

Contract of Employment

§ 1 Commencement of Employment

1. The employment commences with effect from []. Before the beginning of the agreement, an ordinary termination is excluded.
2. Regardless of the date of commencement of the employment, the first 6 months in the establishment/company are considered a probationary period.

During the probationary period, each of the two parties may, terminate with a notice period of two weeks. This rule applies until the last day of the probationary period.

§ 2

Employment Duties

1. The Employee has been employed as [...]
2. The Company reserves the right to delegate to the employee any other or additional activity commensurate with his or her previous education and work experience acquired within the Company or an affiliate.

§ 3

The work place is: [Adresse]

The Company may, at its discretion, arrange the Employee to perform his or her work temporarily or permanently at any other place of work.

§ 4 Working Hours

The regular working hours are 40 hours a week. The beginning and end of the daily working hours as well as any breaks during working hours are determined by the according operational requirements of the Company. In particular, they are to be aligned to the usual business and office hours of the Company's customers.

§ 5

Salary

1. During the first six months of his Employment, the Employee will receive a gross amount of net..... Euro) monthly.

After the probatory period, the Employee will receive a gross amount of

EUR (net Euro) monthly.

The salary will be transferred to his/her account by the end of the calendar month.

2. 2. Overtime hours will only be paid, if those have been expressly requested by the Executive Board.

The Employee only has entitlement to receive a financial compensation for his/her overtime hours. He/she has no right to request time off in lieu.

3. The financial compensation consists of a cashless payment transaction. The Employee shall communicate his/her bank details to the company within 10 days after commencement of employment.

§ 6 Additional Occupations

1. The Company grants the Employee up to 50% of the respective health insurance contribution of BKK ... as far as the Employee provides proof of private health insurance.

2. For travel that becomes necessary in the interest of the Company, the Employee receives reimbursement of the travel costs and expenses according to the respective guidelines of the Company. The Company may change and modify this latter at its reasonable discretion.

3. In June of every year, the Company will pay the Employees a holiday allowance in the amount of.... EURO

4. During the first 5 years of employment with the Company, the Employer will pay the employee a monthly allowance in November of each year together with the monthly salary for November

in the amount of half a gross monthly salary calculated from the average gross monthly salary of the preceding 12 calendar months in accordance with § 5 listed above. If the Employee commences the employment with the Company after January 1 of that year, he/she will receive a pro rata Christmas bonus for the time he has worked for the Company during that year (up to and including 31 December).

After the first 5 years of employment, in November of each year, together with the monthly salary for November, the Company pays the employee a Christmas bonus in the amount of a full gross monthly salary calculated from the average gross monthly salary of the previous 12 calendar months, in accordance with § 5 of this agreement.

The Christmas bonus is paid only if the employee is not terminating his/her employment at the time of payment of the November salary.

§ 7 Inability to work

1. The Employee is obligated to inform the Company immediately of any abrupt leave of absence and its probable duration. On request, the reasons of the absence from work are to be declared.
2. In the case of sickness, the Employee is obliged to present a medical certificate of incapacity for work and its probable absence duration before the end of the third calendar day after the beginning of the leave for sickness. If the incapacity to work lasts longer than indicated in the certificate, the employee must submit a new medical certificate within three days.
3. The Employee is obligated to immediately provide the Company with a certificate of approval for a cure or a medical procedure and to inform the company of the date of commencement of the treatment. The certificate of authorization must contain information on the expected duration of the cure. If the treatment lasts longer than stated in the certificate, the Employee is obliged to provide the company with a further corresponding certificate without delay.

§ 8

Annual Leave

1. The Employee is entitled to an annual leave of [25] days.

2. The annual leave has to be taken in accordance with the operational requirements of the Company. A written request of leave is to be submitted at least four weeks before the actual leave and has to be confirmed (or declined) by the employer. In the first 6 pre-fatory months, the employee is not entitled to request days-off.

3. It is not possible to transfer possible remaining days of vacation beyond the 31st of March of last year, unless the Employees have not been able to take the vacation leave for Company-related reasons; in this case the leave is certified by the execution board.

[4. In accordance with § 6 above, the Employee is paid an annual holiday allowance.]

5. Statutory provisions apply.

§ 9 Confidentiality

1. The Employee shall not disclose any business and operational secrets and any confidential information to external and unaffiliated Employees. This duty of confidentiality extends to the affairs of other companies with which the Company is economically or organizationally connected, and continues also after the end of the employment relationship.

2. All correspondence affecting the Company and its interests, regardless of the addressee, as well as any other business, draft, notes, books, designs, models, tools, materials, etc., shall be their sole property and shall be returned unsolicited upon termination of the employment relationship. Retention rights are excluded. The aforementioned documents shall not be made accessible to third parties.

3. The Company protective provisions are to be observed; confidential and secret documents, drawings, models etc. are to be kept under the requested closure.

§ 10 Inventions

In case of inventions on the workplace, the German Law on Employee Inventions, as amended, as well as the related directives for the Remuneration of Employee inventions in the private sector applies.

§ 11 Secondary Employment

Any paid or unpaid secondary employment requires the special written permission of the Company. This shall not be granted if it is considered that the duties of the Employee to the Company will be materially impaired.

§ 12

Contractual Penalties

1. In the event of culpable non-acceptance or non-conformance of the activity, the Employee undertakes to pay the Company a contractual penalty in the amount of a total monthly income. The total monthly income is calculated by the salaries average of the last twelve months or, in the case of a shorter period of employment, by the average earnings during the period of employment or, if the activity has not started, the agreed remuneration. The Company is entitled to claim further damages.

2. If the employee acts contrary to the obligations of § 11, the Company may, without prejudice to its other rights, demand for each case of the infringement a contractual penalty in the amount of a total monthly income. This does not affect the possibility of asserting further damage.

§ 13 1. The parties agree on an open-end employment contract.

2. After expiration of the probationary period, the employment relationship may be terminated by both parties only subject to a notice period of [four] weeks from [15. or XY of the month].

3. The employment relationship ends at the latest at the end of the month in which the employee reaches the statutory retirement age.

4. An extraordinary termination shall be motivated by a particular cause and in this case a period of notice is not necessary.

If an extraordinary termination announced by the Company results legally ineffective, then it shall in any case be deemed to have been terminated in due time at the next possible termination date.

5. Terminations of any kind must be issued in written form.

6. If the notice period is extended due to mandatory statutory provisions, the employee must also comply with the extended deadline.

7. After a notice of termination – regardless of which side – the company is entitled to indemnify the employee from his duties, taking into account any claims for extra vacation and overtime, without affecting the other duties of the employee.

§ 14 Assignment

1. The Employee assigns his claims for damages to the Company to the extent that he is injured by a third party and the company pays compensation in the event of illness.

2. The Employee is obliged to provide the Company with the information required to file the claims.

§ 15

Place of Jurisdiction

The place of jurisdiction for both contractual partners is the place of registration of the Head Office of the Company.

§ 16 Modification of the Agreement

1. The rights and obligations of the parties are governed solely by this contract. Additional agreements are not made. Changes and additions to the contract require the written form to be legally valid.

2. If individual provisions of this contract are ineffective, this shall not affect the validity of the remainder of the contract.

3. If, in the future, a collective agreement should apply to the employment relationship (for example, due to a general declaration of obligation), the benefits under the terms of this contract may also be offset by dissimilar benefits under the collective agreement. This applies in particular in the case of an annual special remuneration collective agreement.

§ 17 Other Obligations

1. The Company's Office Rules (which are incorporated in this copy of this Agreement) form an integral part of this employment contract and the Employee undertakes to comply with all terms and conditions contained in the current version of this Rules. The Employee acknowledges the right of the company to take appropriate disciplinary measures in case of a violation of any kind against the house rules.

2. The Employee shall notify the Company immediately of any changes to his or her address.